

been settled that under such circumstances the eldest son, even though he died in his father's lifetime, and sustained up to his own decease the character of eldest son, but never eventually came into possession of the estate, is entitled to be treated as a younger son, and to share with the other portionists. Thus in *Davies v. Huguenin* (*a*), the estate was settled on J. Davies and his wife successively for life, remainder to the children as he should appoint, and subject as aforesaid to the use of a trustee for 500 years for raising portions for younger children; remainder to the first and other sons in tail. J. Davies had two sons, William the elder, and John Stanley the younger. William attained twenty-one and died in his father's lifetime, [and it was held that his personal representative thereupon became entitled to a portion, but subject to the exercise of the power of appointment.] Again, in *Ellison v. Thomas* (*b*), the eldest son of R. E. C. was not tenant in tail but tenant for life only, with remainder to his first and other sons in tail; and yet it was held that the personal representative of this eldest son who died without issue male before coming into possession of the estate, was entitled to share in the portions provided for the younger children of R. E. C.

[If the estate is sold for payment of charges, and it is insufficient for payment of all the charges, so that the eldest son gets nothing under the limitation to him, he must still be treated as an eldest child taking the estate subject to the charges, and is not entitled to share in the portions provided for the younger children (*c*).]

5. **Eldest daughter a younger child.**—If an estate be settled on the first and other sons with a provision for younger children, an *eldest daughter* though the firstborn, is regarded as a *younger child* (*d*). So, if an estate be settled on the first and other *sons* of A. with remainder to B., and there is a trust for raising portions for A.'s younger children, and A.

(*a*) 1 H. & M. 730. See *Broadmead v. Wood*, 1 B. C. C. 77; but see *Re Bayley's Settlement*, 9 L. R. Eq. 491.

Stanhope, 4 L. R. H. L. 55; but see *Gray v. Earl of Limerick*, 2 De G. & Sm. 371.

[(*c*) *Reid v. Hoare*, 26 Ch. D. 363.]

(*b*) 1 De G. J. & S. 18; 2 Dr. & Sm. 111; and see *Collingwood v.*

(*d*) *Beale v. Beale*, 1 P. W. 245, *per Cur.*